

SENATE BILL 1083

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 8 and Title 49, relative to hiring
practices of governmental entities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Dismantle DEI Act."

SECTION 2. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) The general assembly finds that local governments are at their most effective
when the employees of the local government are the most highly qualified candidates for
employment with the local government and that hiring decisions should be based on
merit rather than any other metric.

(b) A county government shall not:

(1) Base hiring decisions on any metrics that consider an applicant's
race, color, religion, sex, national origin, age, or disability; or

(2) Decide to hire a particular candidate in order to achieve any goals to
increase diversity, equity, or inclusion in the workplace.

SECTION 3. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by
adding the following as a new section:

(a) The general assembly finds that local governments are at their most effective
when the employees of the local government are the most highly qualified candidates for
employment with the local government and that hiring decisions should be based on
merit rather than any other metric.

(b) A municipal government shall not:

(1) Base hiring decisions on any metrics that consider an applicant's race, color, religion, sex, national origin, age, or disability; or

(2) Decide to hire a particular candidate in order to achieve any goals to increase diversity, equity, or inclusion in the workplace.

SECTION 4. Tennessee Code Annotated, Title 7, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that local governments are at their most effective when the employees of the local government are the most highly qualified candidates for employment with the local government and that hiring decisions should be based on merit rather than any other metric.

(b) A metropolitan government shall not:

(1) Base hiring decisions on any metrics that consider an applicant's race, color, religion, sex, national origin, age, or disability; or

(2) Decide to hire a particular candidate in order to achieve any goals to increase diversity, equity, or inclusion in the workplace.

SECTION 5. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that public institutions of higher education are at their most effective when the faculty members and employees of the institutions are the most highly qualified candidates for employment with the institutions and that hiring decisions should be based on merit rather than any other metric.

(b) A public institution of higher education shall not:

(1) Base hiring decisions on any metrics that consider an applicant's race, color, religion, sex, national origin, age, or disability; or

(2) Decide to hire a particular candidate in order to achieve any goals to increase diversity, equity, or inclusion in the workplace.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.